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CHAPTER 16

SUSTAINABLE FOOD SYSTEMS

ARTICLE 16.1

Objective

1. Recognising the importance of strengthening policies and defining programmes that contribute to the development of sustainable, inclusive, healthy, equitable and resilient food systems, the objective of this Chapter is to establish cooperation between the Parties to jointly engage in the efforts to establish transition towards respective sustainable food systems.
2. This Chapter applies without prejudice to the right of respective Parties granted by the provisions of other Chapters of this Agreement related to food systems or to sustainability, in particular Chapter 6 (Sanitary and Phytosanitary Measures), Chapter 7 (Technical Barriers to Trade) and Chapter 15 (Trade and Sustainable Growth and Development).

ARTICLE 16.2

Scope

1. This Chapter shall apply to cooperation between the Parties to pursue collaborative efforts in developing and ensuring the sustainability of their respective food systems.
2. This Chapter includes provisions for cooperation on specific aspects of sustainable food systems.

ARTICLE 16.3

Definition

1. For the purposes of this Chapter, noting that the concept and definition of Sustainable Food System (hereinafter referred to as “SFS”) are evolving at national and at international level, the Parties share the understanding that SFS refers to food systems that deliver food security and nutrition for all in such a way that the economic, social and environmental bases to generate food security and nutrition for future generations are not compromised.

2. Without prejudice to the Parties' respective laws, regulations and domestic practices, sustainable food systems may include the following important characteristics:
 - (a) the sustainability of food production;
 - (b) the sustainability of food processing, distribution and marketing;
 - (c) the sustainability of food consumption including healthy diets; and
 - (d) the prevention and reduction of food loss and waste.

ARTICLE 16.4

Sustainability of food production, processing, marketing and consumption, and reduction of food loss and waste

1. Taking into account their priorities and circumstances the Parties shall endeavour to cooperate with the objective to enhance the sustainability and resilience of their respective food systems, by:
 - (a) ensuring sustainable food production, by promoting sustainable use of chemical pesticides and fertilizers, such as by reducing their use and mitigating their harmful effects in the food chain, when appropriate and according to differences in circumstances and agronomic conditions of the Parties.
 - (b) minimising the possible environmental and climate impact of food production, to support a transition towards more sustainable food production contributing to decrease the greenhouse gas emissions of food systems, increase carbon sinks and reverse biodiversity loss;
 - (c) developing contingency plans to ensure the security of the food supply in times of crisis;
 - (d) promoting sustainable food processing, transport, wholesale, retail and food services;
 - (e) promoting the uptake of healthy and sustainable diets;
 - (f) addressing efforts in developing food safety policies; and
 - (g) preventing and reducing food loss and waste in line with the United Nations Sustainable Development Goal target 12.3.

2. Such cooperation may include research and innovation collaborations, exchange of relevant and available information, expertise and experiences in the above fields.

ARTICLE 16.5

Other collaborative areas relevant to SFS

1. The Parties agree that in addressing various fields relevant to SFS, collaborative actions are necessary to further facilitate the achievement of objective in Article 16.1 (Objective).
2. The Parties shall engage in cooperation in the area of SFS, including food safety, the fight against agri-food fraud, antimicrobial resistance and animal welfare.
3. The Parties shall exchange relevant information about practices and experiences with respect to the areas referred to in paragraph 2.
4. The cooperation referred to in paragraph 2 may include research and innovation collaborations, that bring in science-based expertise.

ARTICLE 16.6

Action Plan

1. In pursuing the objectives of this Chapter and to monitor the results obtained from its implementation, the Parties shall establish an annual action plan on the fields relevant to SFS referred in this Chapter.
2. The establishment and monitoring of the action plan referred to in paragraph 1, shall be pursuant to Chapter ..., unless the Parties otherwise agree, and will include objective and milestones for each of the actions included in it.

ARTICLE 16.7

Specialised Committee on Sustainable Growth, meeting in its Sustainable
Food Systems Configuration

1. This Article complements and further specifies Article 24.4 (Specialised Committees)] of Chapter 24 (Institutional Provisions).
2. The Committee Sustainable Growth, meeting in its SFS configuration (the “Committee”) shall, with respect to this Chapter, have the following functions:
 - (a) establishing priorities for cooperation and work plans to implement those priorities; and
 - (b) promoting cooperation in multilateral fora.

ARTICLE 16.8

Cooperation in multilateral fora

1. Taking account of their national priorities and circumstances, the Parties shall cooperate to address matters of joint or common interest related to the implementation of this Chapter.
2. Such cooperation may take place bilaterally, or in multilateral and international fora.

ARTICLE 16.9

Additional provisions

1. The Committee shall establish rules mitigating potential conflicts of interest for the participants in its meetings.

The application of this Chapter shall be without prejudice to the position of either Party on any ongoing work and negotiation in relevant fora.

2. Any activities under this Chapter shall be the responsibility of the Parties and shall not affect the independence of their respective authorities and agencies
3. Nothing in this Chapter shall affect the rights and obligations of each Party to protect confidential information, in accordance with each Party's relevant legislation, law and regulation. Each Party shall ensure that procedures are in place to prevent the disclosure of confidential information that is acquired during the process established in this Chapter.
4. Fully respecting the Parties' right to regulate, nothing in this Chapter shall be construed to oblige a Party to:
 - (a) modify its import requirements;

- (b) deviate from domestic procedures for preparing and adopting regulatory measures;
- (c) take action that would undermine or impede the timely adoption of regulatory measures to achieve its public policy objectives; or
- (d) adopt any particular regulatory outcome.

ARTICLE 16.10

Non-application of Dispute Settlement

Chapter 22 (Dispute settlement) does not apply to this Chapter.